

		In addition, the court would benefit from supplemental evidence and/or briefing on whether Plaintiffs' pursuit of administrative remedies after the December 2008 "bar date" provides this court subject matter jurisdiction over this dispute. (See 12 U.S.C., § 1821(d)(5)(C)(d)(6) [providing that any claimant who fails to make timely administrative claim "shall be deemed to be disallowed . . . , and the claimant shall have no further rights or remedies with respect to the claim"]; <i>Saffer v. JP Morgan Chase Bank, N.A.</i>, <i>supra</i>, 225 Cal.App.4th at p. 1243-1244 [explaining the FDIC published notices informing creditors of WaMu that any claims against WaMu must be submitted to the FDIC by 12/30/2008].) Defendant Chase shall submit a supplemental opposition brief not to exceed five (5) pages responding to the new evidence on reply; and addressing whether Plaintiffs have complied with the FIRREA claims process and whether this court has subject matter jurisdiction to consider Plaintiffs' claims based on alleged misconduct by WaMu. Defendant Chase may submit supplemental evidence relating only to these issues. Plaintiffs may file a supplemental reply brief not to exceed five (5) pages responding to any new evidence or argument presented by Defendant Chase. The moving party is ordered to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to September 03, 2026, at 1:30 p.m. in this department. Plaintiff to give notice.
3	Schakel v. MLM Distributors, Inc.	Off calendar
4	People of the State of California v. Benji	Off calendar
5	Clarker, Inc. v. Ellis & Son Trucking, Inc.	<u>OSC re Dismissal</u> The court hereby DISSOLVES the Order to Show Cause re: Dismissal for Failure to Prosecute. <u>Motion to Serve via Secretary of State</u> Plaintiff Clarker, Inc., moves for order permitting service of summons State on Defendant Ellis & Son Trucking, Inc., through the California Secretary of State. For the following reasons, the motion is GRANTED. Service on corporate defendants may generally be accomplished by personal or substituted service. (Code Civ. Proc., §§ 415.20(a), 416.10.)

		Corporations Code section 1702 provides in relevant part: If the agent for service of process is a natural person and cannot be found with due diligence at the address stated in the designation . . . and if no one of the officers or agents of the corporation . . . can be found after diligent search and it is so shown by affidavit to the satisfaction of the court, then the court may make an order that service be made by personal delivery to the Secretary of State or to an assistant or deputy secretary of state” (Corp. Code, § 1702; <i>see also</i> Code Civ. Proc., § 416.10 [providing manners of effecting service on corporation].) Here, the corporate defendant Ellis & Son Trucking, Inc., is a domestic corporation. (S. Mancinelli Decl. [ROA # 20] ¶ 2.) The court finds Plaintiff exercised reasonable diligence in attempting to serve the corporate defendant’s agent for service of process at the address designated for service . (See S. Mancinelli Decl. [ROA # 40] ¶¶ 3-4.) Plaintiff also establishes that no officer or agent of Defendant Ellis & Son Trucking can be found after diligent search. (D. Mancinelli Decl. [ROA # 42] ¶¶ 2-3; S. Mancinelli Supp. Decl. ¶¶ 5-10.) The moving party is ordered to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
6	Alayarian Company, a California Corporation v. VMA Harbor Place Holding Company, LLC	The Motion to Compel Response to Form Interrogatories brought by Defendant VMA Harbor Place Holding Company, LLC is DENIED, without prejudice, due to lack of service. While the instant motion is accompanied by a Proof of Service, which purports to have completed email service on Plaintiff, on March 26, 2026, the Proof of Service was not executed under penalty of perjury, as required. (See Code Civ. Proc., § 1013b, subd. (c) and Code Civ. Proc., § 1010.6, subd. (e)(2)(B).) Pursuant to Code of Civil Procedure section 2015.5, “[w]henever...any matter is required or permitted to be supported, evidenced, established, or proved by the sworn statement, declaration, verification, certificate, oath, or affidavit, in writing of the person making the same,” such document must be executed under penalty of perjury. (Code Civ. Proc., § 2015.5, subd. (a).) A declaration which is not executed in compliance with Code of Civil Procedure section 2015.5, “cannot be used as evidence.” (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 618.) Additionally, as the instant motion has not been opposed by Plaintiff, there has been no waiver of any defect in service. The moving party to give notice.